

24STCV31891 24STCV31891

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-08-27
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Case Number: 24STCV31891 Hearing Date: August 27, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

MICHAEL L. WILLMAN,

Plaintiff,

vs.

LOS ANGELES TURF CLUB, INC., et al.,

Defendants.

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CASE NO.: 24STCV31891

[TENTATIVE] ORDER CONTINUING MOTIONS TO COMPEL
FURTHER DISCOVERY RESPONSES; STRIKING NOTICE OF UNAVAILABILITY

Dept. 506

8:30 a.m.

August 27, 2026

MOTIONS
TO COMPEL FURTHER RESPONSES

On

June 9, 2026, Plaintiff Michael L. Willman filed four motions to compel Defendants' further responses to Requests for Production of Documents (Set Three).

Plaintiff

improperly reserved hearings for "Motions to Compel Discovery," not "Motions to Compel Further Discovery." This results in an inaccurate projection and accounting of the Court's workload, inconveniencing both the Court and other litigants.

For

a motion to compel further, the moving party must meet and confer with the opposing party and file a separate statement or follow the Court's alternative method of outlining the disputes. (Code Civ. Proc., § 2031.310, subd. (b); California Rules of Court, rule 3.1345(b).) This Department requires the parties to follow the procedures outlined in Exhibit A of Department 506's Courtroom Information (available

on the Court's website, www.lacourt.ca.gov) and file a joint statement.

Plaintiff's

counsel's declaration, motion, and separate statement make clear that they did not attempt to follow these procedures. Plaintiff's

counsel sent a single email to Defendants' counsel on June 8, 2026 at 3:00 p.m., the day before the motion filing deadline.

(Chandrashekar Decl. ¶ 4, Ex. 3.)

On June 9, 2026 at 12:02 p.m. and 2:59 p.m., Plaintiff's counsel followed up with requests to extend the deadline.

Plaintiff then filed these motions a few hours later. This is not "a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." (Code Civ.

Proc., § 2016.040; see Code Civ. Proc., § 2031.310, subd. (b)(2).) All parties are ordered not to do this again and are warned that continued action of this type may result in monetary sanctions under Code of Civil Procedure section 177.5.

For

these reasons, the four motions are CONTINUED to November 24, 2026 at 8:30 a.m.

The

parties are ordered to follow Department 506's procedures and file a Joint Statement containing only the matters that were not resolved by meeting and conferring.

An

Order to Show Cause Re: Imposition of Sanctions Against Plaintiff's Counsel in an Amount Up to \$1,000 Under Code of Civil Procedure Section 177.5 is scheduled for November 24, 2026 at 8:30 a.m.

NOTICE

OF UNAVAILABILITY

On

August 14, 2026, Plaintiff's counsel filed a Notice of Unavailability of Counsel.

"It

has apparently become common practice in the trial courts for litigants to file

a 'notice of unavailability' under the guise of Tenderloin Housing Clinic, Inc.

v. Sparks (1992) 8 Cal.App.4th 299, 10 Cal.Rptr.2d 371. The notice purports to advise the other parties to the action—as well as the Court—that the deliverer will not be available for

a prescribed period of time and that no action may be taken during that period which adversely affects the unavailable party.

To the extent this practice attempts to put control of the Court's calendar in the hands of counsel—as opposed to the judiciary—it is an impermissible infringement of the Court's inherent powers.” (Carl v. Superior Court (2007) 157 Cal.App.4th 73, 74-75.) As the Carl court explained, “[n]othing in Tenderloin, however, expressly condones the practice that has grown up around its name. It has simply been made up.” (Id. at p. 76.)

The
Court, on its own motion, STRIKES the Notice of Unavailability of Counsel under Code of Civil Procedure section 436, subdivision (b).

Moving
party to give notice.

Parties
who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties
in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 27th day of August 2026

Hon. Thomas D. Long

Judge of the Superior
Court